A

MEASURE

PASSED BY

The National Assembly of the Church of England

To establish a scheme of pensions for the widows and dependants of the Clergy, and for that purpose to amend the Clergy Pensions Measures, 1926 to 1936. [29th May 1936.]

INTRODUCTORY.

Establishment of two classes of widows' and dependants' pensions.

1. The Church of England Pensions Board (in this Measure referred to as " the pensions authority ") as the body administering the several classes of pensions for the clergy established by the Clergy Pensions Measures, shall establish and administer in manner laid down by this Measure the following further two classes of pensions (namely) :—

(i) pensions payable under Part I of this Measure to widows and dependants of clerks in Holy Orders to whom that Part of this Measure applies; and

(ii) pensions payable to widows and dependants of clerks in Holy Orders pursuant to agreements made with the pensions authority under Part II of this Measure.

PART I.

Applications of Part I.

2.—(1) This Part of this Measure shall apply to every clerk in Holy Orders who—

(i) is ordained after the commencement of this Measure; and

(ii) (*a*) becomes a compulsory contributor under the Clergy Pensions Measures while he is a married man, or

(*b*) marries while he is a compulsory contributor under the Clergy Pensions Measures, or

(*c*) being a compulsory contributor under the Clergy Pensions Measures and unmarried applies to become a compulsory contributor under this Measure.

(2) Immediately upon any unmarried clerk in Holy Orders becoming a compulsory contributor under the Clergy Pensions Measures, the pensions authority shall invite him to apply to become a compulsory contributor under this Measure.

Contributions payable under Part I.

3.—(1) The contributions payable under the Clergy Pensions Measures by any clerk in Holy Orders to whom this Part of this Measure applies (in this Measure referred to as a "compulsory contributor under this Measure") shall as from the date upon which this Part of this Measure becomes applicable to him until he reaches the age of seventy years be increased by an amount determined by his age at the date upon which this Part of this Measure becomes applicable to him, in accordance with the table contained in Part I of the Schedule to this Measure: Provided that upon any such quinquennial valuation of the Clergy Pensions Fund as is provided for by subsection (5) of section twenty-four of the Clergy Pensions Measure, 1926, the actuary may recommend a revised table to be substituted for the aforesaid table, and thereupon the pensions authority may in the prescribed manner substitute such revised table for the aforesaid table, and the table so substituted shall become applicable to all contributions payable under this Part of this Measure as from the date of such substitution.

(2) A clerk in Holy Orders upon or at any time after becoming a compulsory contributor under this Measure may by agreement with the pensions authority compound for the payment of any increases of contribution payable by him under this Measure by the payment either as a lump sum or in such instalments as may from time to time be determined by agreement with the pensions authority of a sum to be determined by the pensions authority on the advice of their actuary.

(3) In any case where a compulsory contributor under this Measure either is the holder of a fully paid up policy of assurance issued to him before the date upon which this Measure becomes applicable to him and securing the payment to him upon the attainment of a specified age or to his representatives upon his death of a sum of not less than £200 or is the holder of a policy of assurance issued to him as aforesaid the surrender value of which is not less than £200, the following provisions shall apply if the contributor at any time so requests and if the pensions authority are satisfied that their application will not render any less secure the provision made under this Measure for his widow and dependants :—

(i) the contributor shall not thenceforth be liable to pay any increase of contribution hereunder;

(ii) he shall forthwith assign and deliver the policy to the pensions authority;

(iii) the pensions authority shall hold any moneys received in respect of the policy in trust as to £200 to provide the pension for his widow or dependants provided for by subsection (1) of section four of this Measure or to pay the same to his representatives as provided by subsection (7) of the said section, and as to the remainder thereof in trust for him or his representatives absolutely.

(4) Section eight of this Measure (save in so far as it excludes the application of section five of this Measure) shall not apply to the case of a clerk who has compounded under subsection (2) of this section or to whom the provisions of subsection (3) thereof have been applied.

(5) The provisions of section fifteen of the Clergy Pensions (Amendment) Measure, 1928, as to the repayment of contributions during the lifetime of a clerk shall not apply to increases of contribution payable under this Measure.

Pensions payable to widows and dependants.

4.—(1) Subject to the provisions of this Measure, upon the death of a compulsory contributor under this Measure—

(i) if he shall leave a widow, such widow shall receive a pension for life of a capitalised value of

£200 at the death of such contributor, in accordance with the scale set out in the table contained in Part II of the Schedule to this Measure (hereinafter referred to as "the scheduled scale");

(ii) if he shall not leave a widow, such dependant as he shall nominate in manner laid down by this section shall receive a pension for life of a capitalised value of £200 at the death of such contributor, according to the scheduled scale.

(2) Every nomination of a dependant for the receipt of a pension under this section shall be made by an instrument in writing under the hand of the clerk upon whose death the pension is to be paid delivered to the pensions authority during the lifetime of such clerk.

(3) A clerk may revoke a nomination by an instrument in writing under his hand delivered to the pensions authority during his lifetime, and shall in such case make and deliver to the pensions authority a nomination replacing that which he has revoked.

(4) In so far as the provisions of an instrument of nomination executed hereunder by a clerk in Holy Orders are inconsistent with the provisions of a previous instrument executed by the same clerk the provisions of the later instrument shall prevail.

(5) A clerk may by an instrument or instruments of nomination nominate more than one dependant for the receipt of a pension under this section, and generally make such provisions in favour of dependants in respect of such pension as might lawfully be made by will.

(6) In any case where more than one pension is payable under this section the aggregate capitalised value at the death of the clerk concerned of the pensions so payable shall not, according to the scheduled scale, exceed £200.

(7) Subject to the provisions of this Measure, in any case where a compulsory contributor under this Measure dies leaving no widow or dependant, the sum of £200 or, where a pension is payable or pensions are payable hereunder, a sum equal to the difference between £200 and the capitalised value at the death of such contributor of such pension or pensions shall be payable to his representatives.

Additional pension payable to widows and dependants of contributors who have not entered upon receipt of a pension under Clergy Pensions Measures.

5. Subject to the provisions of this Measure, in any case where a compulsory contributor under this Measure dies leaving a widow or a dependant or dependants and a sum in respect of contributions paid by him to the pensions authority under the Clergy Pensions Measures would but for this section be repayable to his representatives under section fifteen of the Clergy Pensions (Amendment) Measure, 1928, as amended by any subsequent Measure or enactment, such sum shall not be repaid to his representative, but shall be applied by the pensions authority in providing an additional pension for his widow, or if he shall leave no widow, an additional pension or pensions for his dependant or dependants nominated as aforesaid of such an amount that the capitalised value of such pension or pensions at the date of the death of such contributor according to the scheduled scale is equal to the sum repayable under the said section fifteen or any such amendment thereof as aforesaid: Provided that in any case where a clerk dies leaving no widow and without having exercised his right of nomination in respect of the sum or any part of the sum applicable under this section, such sum or such part thereof shall be payable by the pensions authority to the representatives of such clerk.

Additional pension payable to widows of contributors in receipt of disability pensions.

6. Subject to the provisions of this Measure, in any case where a compulsory contributor under this Measure, having retired by reason of permanent disability and entered upon receipt of a pension (herein referred to as "a disability pension") under the Clergy Pensions Measures before attaining the age of seventy years, dies leaving a widow, such widow shall receive an additional pension for life of a capitalised value of £200 at the death of such contributor, in accordance with the scheduled scale.

Power of pensions authority to commute pension for capital sum.

7. In any exceptional case where the pensions authority is of opinion that a capital sum will be of special benefit to a widow or dependant, the pensions authority may at any time at its sole discretion commute the whole or any part of the pension payable to such widow or dependant under this Part of this Measure for such capital sum as is estimated to be the actuarial equivalent thereof, and shall, if the pensioner is of full age and capable of giving an effective discharge (in which case the commutation shall not be made without the consent of the pensioner) pay to the pensioner the capital sum thereupon payable, and in the case of other pensioners (in whose case the commutation shall not require their consent) shall pay or apply such capital sum for maintenance, education and benefit of the pensioner in such manner as the pensions authority shall think fit.

Preservation of pension rights.

8.—(1) Subject to the provisions of this section, if at any time before a compulsory contributor under this Measure dies or reaches the age of seventy years he ceases (otherwise than by reason of having entered upon receipt of a disability pension under the Clergy Pensions Measures) to be liable to pay contributions under the said Measures, then upon the death of such contributor—

(i) no pension and no such sum in lieu of pension as is specified in subsection (7) of section four of this Measure shall be payable under this Part of this Measure;

(ii) the provisions of section five of this Measure shall not apply.

(2) The foregoing provisions of this section shall not have effect in respect of a clerk who has ceased to be liable to contribute as aforesaid—

(i) if and so long as such clerk upon ceasing to be so liable continues to pay annually to the pensions authority by agreement with the authority a sum (hereinafter called "a special voluntary contribution") equal in amount to that which he was liable to pay by way of increase of contribution under section three of this Measure;

(ii) if such clerk after a non-contributing period as hereinafter defined pays to the pensions authority a sum equal to the aggregate of the sums which would have been payable by him by way of increase of contribution under section three of this Measure during such non-contributing period if he had remained liable to contribute as aforesaid, together with interest at the rate of two and one-half per cent. per annum with annual rests on each such increase from the date at which the same would have become payable, and so long thereafter as he continues to pay by agreement with the authority a special voluntary contribution annually to the pensions authority :

Provided that no clerk shall forfeit his rights under this subsection by reason of ceasing to pay special voluntary contributions either upon reaching the age of seventy years or upon again becoming liable to pay contributions under the Clergy Pensions Measures.

(3) If a clerk to whom subsection (1) of this section has become applicable again becomes liable to pay contributions under the Clergy Pensions Measures after a non-contributing period in respect of which he has not paid to the pensions authority any such sum as is laid down in paragraph (ii) of the immediately preceding subsection, any pension or sum payable to his widow or dependants under the preceding sections of this Measure shall be reduced by such amount as the actuary to the pensions authority shall determine, having regard to the length of such non-contributing period.

(4) For the purposes of this section a non-contributing period shall mean in the case of any clerk to whom subsection (1) of this section has become applicable a period exceeding in length one complete calendar year during which such clerk has not paid a special voluntary contribution and which commences upon the said subsection becoming applicable to him or upon his ceasing to pay special voluntary contributions and terminates either upon his again becoming liable to pay contributions under the Clergy Pensions Measures or upon his reaching the age of seventy years, whichever event shall first occur.

Financial provisions.

9.—(1) All increases of contributions or special contributions payable under this Part of this Measure shall be paid into the Clergy Pensions Fund.

(2) All pensions payable under and the expenses of the pensions authority incurred in administering this Part of this Measure shall be paid out of the Clergy Pensions Fund.

PART II.

Pensions payable by agreement.

10.—(1) The pensions authority shall have power to enter into an agreement with any clerk in Holy Orders living in the area to which this Measure applies (including any pensioned or retired clerk or any clerk to whom the Clergy Pensions Measures apply or the Clergy Pensions (Older Incumbents) Measure, 1930, or Part I of this Measure applies) for the payment of a pension under this Part of this Measure.

(2) Any pension or right arising under an agreement made under this Part of this Measure in favour of a clerk in Holy Orders or a widow or dependant of such clerk shall be enjoyed by such clerk or other person in addition to and not in lieu of any pension or right arising in his or her favour under Part I of this Measure.

(3) The following provisions shall be applicable to any such pension :—

(i) the pension shall commence at the death of the clerk concerned;

(ii) the pensioner must be either the widow or a dependant of such clerk (but so that a clerk may enter into agreements providing for pensions both for a widow and for one or more dependants);

(iii) the consideration shall in every case be actuarially adequate, and may consist either of periodical or other contributions in money or (notwithstanding any of the provisions of any statute or Measure relating to pensions for the clergy making pensions inalienable) of a surrender by the clerk concerned to the pensions authority of any part of his rights to repayment of contributions or a pension under the Clergy Pensions Measures, or to an older incumbent's pension as defined by the Clergy Pensions (Older Incumbents) Measure, 1930:

Provided that—

(*a*) no clerk shall surrender such a proportion or his prospective right to such a proportion of a pension as would in the opinion of the pension authority if surrendered leave him without adequate provision for his needs, and in no case shall he surrender more than one-half of a pension or his prospective right to more than one-half thereof;

(*b*) no such prospective right to a pension shall be surrendered except in contemplation of the retirement of the clerk concerned and if his retirement shall not take place within three months from the surrender such surrender shall be void; and

(*c*) no charge on the revenues of any benefice arising or to arise under section twenty-seven of the Clergy Pensions Measure, 1926, as amended by any subsequent enactment, or under the Resignation Acts as modified by the Clergy Pensions (Older Incumbents) Measure, 1930, shall be affected in respect of its amount or duration by any surrender under this section, and the annual sums derived from any such charge shall be payable in full to the pensions authority as before the passing of this Measure;

(iv) the pension agreement may apply with or without modification any of the provisions of Part I of this Measure as to the nomination of dependants or as to the commutation of pensions or any other of the provisions of Part I of this Measure that may be applicable.

(4) Any agreement made under this Part of this Measure may be modified by the substitution of one beneficiary for another or otherwise by agreement between the pensions authority and the clerk concerned.

11. The pensions authority shall establish a special fund into and to which there shall from time to time be paid and transferred— Special fund.

(i) all contributions payable under agreements made under this Part of this Measure; and

(ii) all sums which, but for a surrender of rights under any agreement made under this Part of this Measure, would have been payable out of the Clergy Pensions Fund together with all sums derived from such proportion of any charge upon the revenues of a benefice as under any such agreement is surrendered in favour of the pensions authority;

and out of which all pensions payable under agreements made under this Part of this Measure and the expenses of the pensions authority incurred in administering this Part of this Measure shall respectively be paid.

PART III.

Payment and application of pensions.

12. Subsections (1), (2), (3) and (4) of section six of the Clergy Pensions Measure, 1926 (which relate to the mode of payment of pensions and contain provisions for the protection of pensioners) shall so far as the context admits apply to pensions payable under this Measure, or under agreements made under this Measure, in the same manner as they apply to pensions under the Clergy Pensions Measures, and subsection (4), as so applied, shall extend so as to authorise the retention of instalments of the pension of a widow or dependant in any case where arrears of contributions are due from the estate of the deceased clerk concerned :

Provided that—

(i) the pensions authority shall have power to waive wholly or partly the right to recover such arrears or to provide for meeting the same and the interest thereon by a reduction of the pension payable under this Measure, or under an agreement made under this Measure, for such period as the pensions authority may deem necessary;

(ii) in any case where the pensions authority is by this section authorised to retain or reduce instalments of pensions payable to more than one dependant, the burden of such retention or reduction shall be distributed rateably by the pensions authority among such dependants in proportion to the amounts of such pensions.

Pension not assignable.

13. Subject to the provisions of this Measure, no pension or right under this Measure shall be capable of being assigned, charged, or anticipated, and every purported assignment of charge upon or anticipation of the same shall be void, and the same shall not pass to any trustee in bankruptcy of the pensioner.

Resignation of pensions.

14. A pensioner in receipt of a pension under this Measure, or under an agreement made under this Measure, may, by an instrument in writing signed by the pensioner and delivered to the pensions authority, resign such pension, and upon such resignation such pension shall determine.

Powers and duties of the pensions authority; determination of questions.

15.—(1) The provisions of the Clergy Pensions Measures relating to the powers and duties of the pensions authority shall, so far as the context admits, extend to the system of pensions established by this Measure and be construed accordingly.

(2) Any question as to the rights of a widow of a clerk in Holy Orders, or of the clerk himself, or of any other person under this Measure, or under an agreement made under this Measure (including the question whether any person is a dependant of a clerk), shall be deemed to be a question to which section twenty-three of the Clergy Pensions Measure, 1926, relates.

Administration of funds.

16. Subsections (3), (4) and (5) of section twenty-four of the Clergy Pensions Measure, 1926 (which subsections relate to the administration of the Clergy Pensions Fund) shall apply to the special fund established under section eleven of this Measure in the same manner as they apply to the Clergy Pensions Fund except that the quinquennial audit and valuation of the said fund shall always be held and made contemporaneously with the quinquennial audit and valuation of the Clergy Pensions Fund.

Donations and bequests fund.

17.—(1) The pensions authority shall have power to create a fund for the benefit of widows and dependants of clerks in Holy Orders consisting of testamentary or other gifts or grants made to the pensions authority for their benefit.

(2) The pensions authority shall within six months of the commencement of this Measure draw up a scheme for the application of such fund and shall submit such scheme to the Church Assembly for its approval.

(3) The pensions authority shall have power from time to time to modify the scheme so approved by the Church Assembly provided that no such modification shall take effect until it has received the approval of the Church Assembly.

(4) Such scheme may provide for the augmentation of any pension payable under this Measure or under any agreement made under this Measure out of any part of the said fund lawfully applicable for that purpose, and may provide for grants to widows and dependants of clergy who were resident within the area to which this Measure applies but to whom this Measure did not apply.

(5) The pensions authority shall have power to pay into the said fund any moneys which may become applicable under the provisions of paragraph (v) of section twenty-five of the Clergy Pensions Measure, 1926, in which paragraph the words "and dependants" shall be inserted after the word "orphans."

Reciprocal arrangements with other churches.

18. The provisions of the Clergy Pensions Measures relating to reciprocal arrangements with other churches or organised bodies of clergy shall extend so as to authorise arrangements for transferring to the pension scheme of another church or body of clergy any claims in respect of pensions payable under this Measure or under agreements made under this Measure, and arrangements for granting rights to clerks in Holy Orders entering the scheme of pensions established by the Clergy Pensions Measures similar to those conferred by Part I of this Measure:

Provided that no claims in respect of a pension payable under an agreement made under this Measure shall be transferred without the consent of the clerk who has entered into such agreement.

Diocesan widows and dependants committees.

19.—(1) In every diocese the diocesan board of finance shall within one year after the commencement of this Measure appoint a diocesan widows and dependants committee, which shall include representatives of charities of which widows and dependants of the deceased clergy of the diocese are beneficiaries.

(2) Such diocesan widows and dependants committee shall watch over the interests of such widows and dependants and co-ordinate so far as possible the work of such charities and that of the pensions authority.

(3) In every diocese the diocesan board of finance shall appoint an officer or officers whose duty it shall be to bring before the widows and dependants committee information as to the circumstances of widows and dependants of deceased clergy of the diocese and make all proper representations on their behalf to such committee and to inform such widows and dependants of their rights under this Measure and of the action taken or proposed to be taken by such committee on their behalf.

20.—(1) In this Measure— Interpretation.

the expression "clerk in Holy Orders" means a bishop, a priest, or a deacon;

the expression "ordained" means ordained a deacon;

the expression "Clergy Pensions Measures" means the Clergy Pensions Measures, 1926 to 1936;

the expression "Resignation Acts" means the Incumbents Resignation Acts, 1871 and 1887;

the expression "pension" includes where the context so admits pensions for life or any less period;

the expression "prescribed" means prescribed by a byelaw of the pensions authority made under the Clergy Pensions Measures and duly submitted to and approved by the Church Assembly;

the expression "dependant" means any person who at the time when he is nominated for the receipt of a pension or when the agreement for providing a pension for him is entered into is either wholly or to a substantial extent dependent on the clerk in Holy Orders making such nomination or entering into such agreement.

(2) References in this Measure to the death of a compulsory contributor under this Measure shall apply to the death of a clerk who was at any time during his life a compulsory contributor under this Measure.

(3) This Measure shall be construed as one with the Clergy Pensions Measures.

21.—(1) This Measure shall come into force on the appointed day. Commencement.

(2) The appointed day shall be such day not more than six months after the day on which this Measure receives the Royal Assent, as the Archbishops of Canterbury and York by writing under their respective hands and archiepiscopal seals shall jointly determine.

(3) The determination of the appointed day under this section shall be notified by advertisement in the London Gazette.

Short title.

22. This Measure may be cited as the Clergy Pensions (Widows and Dependants) Measure, 1936, and this Measure and the Clergy Pensions Measures may be cited together as the Clergy Pensions Measures, 1926 to 1936.

Extent.

23. This Measure shall extend to the provinces of Canterbury and York including the Channel Islands and the Isle of Man.

SCHEDULE.

Sections 3, 4.

Part I.

Contribution Table.

Age next birthday of Contributor on Measure becoming applicable to him.	Amount of Annual Contribution. £	s.	d.
24	2	12	6
25	2	14	0
26	2	16	0
27	2	18	0
28	3	0	0
29	3	2	0
30	3	4	0
31	3	6	0
32	3	8	6
33	3	11	0
34	3	13	6
35	3	16	0
36	3	19	6
37	4	3	0
38	4	6	6
39	4	10	6
40	4	14	6
41	4	19	0
42	5	4	0
43	5	9	6
44	5	15	0
45	6	1	0
46	6	8	0
47	6	15	0
48	7	3	0
49	7	11	6
50	8	0	0
51	8	10	6
52	9	2	0
53	9	14	6
54	10	8	0
55	11	2	6
Over 55	Such sum as shall be recommended by the actuary to the pensions authority.		

Part II.

Rate of Pension.*

Age last Birthday.	Annual sum payable to Widow or Female Dependant where Pension is of a Capitalised Value of £400.	Annual sum payable to Male Dependant where Pension is of a Capitalised Value of £400.
	£ s. d.	£ s. d.
20	15 18 0	16 8 0
21	16 0 4	16 11 0
22	16 2 8	16 14 0
23	16 5 4	16 17 0
24	16 8 0	17 0 4
25	16 10 8	17 3 8
26	16 13 8	17 7 0
27	16 16 8	17 10 8
28	16 19 8	17 14 4
29	17 2 8	17 18 0
30	17 6 0	18 2 0
31	17 9 4	18 6 0
32	17 13 0	18 10 4
33	17 16 8	18 14 8
34	18 0 4	18 19 4
35	18 4 0	19 4 4
36	18 8 0	19 9 4
37	18 12 4	19 14 8
38	18 16 8	20 0 4
39	19 1 4	20 6 0
40	19 6 0	20 12 0
41	19 11 0	20 18 4
42	19 16 0	21 5 4
43	20 1 4	21 12 8
44	20 7 0	22 0 4
45	20 13 4	22 8 4
46	20 19 8	22 17 0
47	21 6 0	23 6 4
48	21 13 0	23 16 0
49	22 0 4	24 6 0
50	22 8 0	24 16 8
51	22 16 4	25 8 0
52	23 5 0	26 0 8
53	23 14 4	26 14 0
54	24 4 4	27 7 8

* See note at foot of next page.

Rate of Pension—(*continued*).

Age last Birthday.	Annual sum payable to Widow or Female Dependant where Pension is of a Capitalised Value of £400.			Annual sum payable to Male Dependant where Pension is of a Capitalised Value of £400.		
	£	*s.*	*d.*	£	*s.*	*d.*
55	24	15	4	28	2	0
56	25	6	8	28	17	8
57	25	18	8	29	14	4
58	26	11	8	30	11	8
59	27	5	4	31	10	4
60	28	0	8	32	10	0
61	28	16	8	33	10	8
62	29	14	0	34	12	8
63	30	12	8	35	16	8
64	31	13	4	37	2	0
65	32	15	4	38	9	4
66	33	18	0	39	18	4
67	35	2	8	41	9	4
68	36	10	8	43	2	8
69	38	0	0	44	19	0
70	39	12	8	46	18	0
71	41	8	0	49	0	4
72	43	5	4	51	6	8
73	45	6	8	53	17	0
74	47	12	0	56	11	4
75	50	1	4	59	10	4
76	52	16	8	62	13	0
77	55	15	4	66	0	0
78	59	0	0	69	10	0
79	62	8	0	73	3	8
80	66	6	8	77	1	4

* The annual sum set out in the Table is that which will normally be payable to a widow or a single nominated dependant in respect of the pensions (each of a capitalised value of £200) payable under sections 4 and 5 (or, in cases where a disability pension has been taken, payable to a widow under sections 4 and 6) of the Measure. Where the repayable contributions exceed £200, the capitalised value of the pension payable under section 5, and, consequently, the figures in the Table, must be increased. Similarly, where the only pension payable is the pension of capitalised value £200 payable under section 4, the figures in the Table, which are calculated on £400, will suffer a proportionate decrease.

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